



**Bill Number: H.B. 2265**

**Mesnard ADD COW Floor Amendment**

**Reference to: House engrossed bill**

**Amendment drafted by: Leg. Council**

### **FLOOR AMENDMENT EXPLANATION**

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- Restores the ability of the court to adopt new fees, fines, surcharges and assessments that apply against criminal defendants.

ADDITIONAL COW  
MESNARD FLOOR AMENDMENT  
SENATE AMENDMENTS TO H.B. 2265  
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-584, Arizona Revised Statutes, is amended to  
3 read:

4 11-584. Public defender; duties; reimbursement prohibited

5 A. The public defender, on order of the court, shall defend, advise  
6 and counsel any person who is entitled to counsel as a matter of law and  
7 who is not financially able to employ counsel in the following proceedings  
8 and circumstances:

9 1. Offenses triable in the superior court or justice courts at all  
10 stages of the proceedings, including the preliminary examination.

11 2. Extradition hearings.

12 3. Mental disorder hearings only if appointed by the court under  
13 title 36, chapter 5.

14 4. Involuntary commitment hearings held pursuant to title 36,  
15 chapter 18, only if appointed by the court.

16 5. Involuntary commitment hearings held pursuant to title 36,  
17 chapter 37, if appointed by the court as provided in section 36-3704,  
18 subsection C and the board of supervisors has advised the presiding judge  
19 of the county that the public defender is authorized to accept these  
20 appointments.

21 6. Juvenile delinquency and incorrigibility proceedings only if  
22 appointed by the court under section 8-221.

23 7. Appeals to a higher court or courts.

24 8. All juvenile proceedings other than delinquency and  
25 incorrigibility proceedings under paragraph 6 of this subsection,  
26 including serving as a guardian ad litem, if appointed by the court  
27 pursuant to section 8-221 and the board of supervisors has advised the

1 presiding judge of the county that the public defender is authorized to  
2 accept these appointments.

3 9. All mental health hearings regarding release recommendations  
4 that are held in the superior court pursuant to title 13, chapter 38,  
5 article 14 and the board of supervisors has advised the presiding judge of  
6 the superior court in the county that the public defender is authorized to  
7 accept these appointments.

8 10. As attorneys in any other proceeding or circumstance in which a  
9 party is entitled to counsel as a matter of law if the court appoints the  
10 public defender and the board of supervisors has advised the presiding  
11 judge of the county that the public defender is authorized to accept these  
12 appointments as specified.

13 B. The public defender shall perform the following duties:

14 1. Keep a record of all services rendered by the public defender in  
15 that capacity and file with the board of supervisors an annual report of  
16 those services.

17 2. By December 1 of each year, file with the presiding judge of the  
18 superior court, the chief probation officer and the board of supervisors  
19 an annual report on the average cost of defending a felony case.

20 C. ~~Although~~ The services of the public defender or court appointed  
21 counsel shall be without expense to the defendant, the juvenile, a parent  
22 or any other party. ~~;~~ The court may NOT make ~~the following~~ ANY  
23 assessments ~~RELATED TO THE APPOINTMENT OR SERVICES OF A PUBLIC DEFENDER,~~  
24 ~~INCLUDING:~~

25 1. ~~Order~~ An indigent administrative assessment ~~of not more than~~  
26 ~~\$25.~~

27 2. ~~Require that the defendant, including a defendant who is placed~~  
28 ~~on probation, or any other party who is appointed counsel under subsection~~  
29 ~~A of this section repay to the county a reasonable amount to reimburse ANY~~  
30 ~~REIMBURSEMENT TO~~ the county for the cost of the person's legal services.  
31 Reimbursement for legal services in a guardianship or conservatorship  
32 proceeding shall be ordered pursuant to section 14-5414. The court may  
33 not order a juvenile or the juvenile's parent or guardian to pay  
34 administrative assessments or ~~TO~~ reimburse the cost of legal services.

35 ~~D. In determining the amount and method of payment the court shall~~  
36 ~~take into account the financial resources of the defendant and the nature~~  
37 ~~of the burden that the payment will impose.~~

38 ~~E. Assessments collected pursuant to subsection C of this section~~  
39 ~~shall be paid into the county general fund in the account designed for use~~  
40 ~~solely by the public defender and court appointed counsel to defray the~~  
41 ~~costs of public defenders and court appointed counsel. The assessments~~  
42 ~~shall supplement, not supplant, funding provided by counties for public~~  
43 ~~defense, legal defense and contract indigent defense counsel in each~~  
44 ~~county.~~

1       Sec. 2. Section 12-115, Arizona Revised Statutes, is amended to  
2 read:

3       12-115. Additional filing, appearance and answer or response  
4           fees; deposit

5       A. In addition to any other assessment authorized by law, the  
6 supreme court shall establish an additional fee on each filing, appearance  
7 and answer or response fee charged by a clerk of the superior court.

8       B. The clerk shall collect the additional fee and monthly remit the  
9 additional fees to the county treasurer. The county treasurer shall  
10 transmit the fees to the state treasurer on or before the fifteenth day of  
11 each month for deposit, pursuant to sections 35-146 and 35-147, in the  
12 fair jury improvement fund established by section 21-222. The state  
13 treasurer shall invest and divest monies in the fund as provided by  
14 section 35-313, and monies earned from investment shall be credited to the  
15 fund.

16       C. The additional fee may be deferred or waived pursuant to  
17 sections 12-302 and 12-304.

18       D. In establishing the additional fees under subsection A of this  
19 section, the supreme court may designate by rule that the additional fees  
20 not be imposed on filings in types of cases that involve minimal use of  
21 court resources, that are not afforded the opportunity for a trial by jury  
22 or that do not involve the use of digital evidence. **THE SUPREME COURT MAY**  
23 **NOT IMPOSE THE ADDITIONAL FEES ON FILINGS FOR A JURY TRIAL IN A CRIMINAL**  
24 **CASE.**

25       Sec. 3. Section 12-253, Arizona Revised Statutes, is amended to  
26 read:

27       12-253. Powers and duties

28       The adult probation officer shall:

29       1. Make and file a complete record of persons **WHO ARE** placed under  
30 suspended sentence by the court, ~~and~~ and of all reports **THAT ARE** made to the  
31 **ADULT PROBATION** officer in writing or in person, in accordance with the  
32 conditions imposed by the court.

33       2. Exercise general supervision and observation over persons **WHO**  
34 **ARE** under suspended sentence and supervision pursuant to section 13-3994,  
35 subject to control and direction by the court.

36       3. Serve warrants, make arrests and bring persons before the court  
37 who are under suspended sentences. The **ADULT PROBATION** officer has the  
38 authority of a peace officer in the performance of the **ADULT PROBATION**  
39 officer's duties.

40       4. Investigate cases **THAT ARE** referred to the **ADULT PROBATION**  
41 officer for investigation by the court in which the **ADULT PROBATION**  
42 officer is serving and report to the court. In an investigation for a  
43 presentence report, the adult probation officer shall promptly inquire  
44 into the circumstances of the offense, ~~AND~~ **AND** the convicted person's history  
45 of delinquency or criminality, social history, employment history, family

1 situation, economic status, ~~including the ability to contribute to~~  
2 ~~reimbursement for the costs of the person's legal defense pursuant to~~  
3 ~~section 11-584,~~ education and personal habits. ~~The presentence report~~  
4 ~~shall contain a recommendation by the officer regarding contribution by~~  
5 ~~the convicted person toward the costs of legal defense pursuant to section~~  
6 ~~11-584.~~ The ADULT PROBATION officer shall also promptly inquire into the  
7 physical, emotional and financial impact of the offense on the victim and  
8 the emotional and financial impact of the offense on the VICTIM'S  
9 immediate family ~~of the victim~~ and shall notify the victim or the VICTIM'S  
10 immediate family ~~of the victim~~ of the right to appear personally or by  
11 counsel at any aggravation or mitigation proceeding.

12 5. Secure and keep a complete identification record of every person  
13 WHO IS released under a suspended sentence and a written statement of the  
14 conditions of the suspension.

15 6. Obtain and assemble information ~~concerning THAT CONCERNS~~ the  
16 conduct of persons WHO ARE placed under suspended sentence and report the  
17 information to the court.

18 7. Bring defaulting probationers into court when in the ADULT  
19 probation officer's judgment the conduct of the probationer justifies the  
20 court to revoke suspension of the sentence.

21 8. Monitor the payment of restitution.

22 ~~<<Sec. 4. Title 12, chapter 3, article 1, Arizona Revised Statutes,~~  
23 ~~is amended by adding section 12-306, to read:~~

24 ~~12-306. New fees~~

25 ~~THE COURT SHALL NOT ADOPT ANY NEW FEE, FINE, SURCHARGE OR ASSESSMENT~~  
26 ~~THAT APPLIES AGAINST A CRIMINAL DEFENDANT.>>~~

27 Sec. 4. Section 12-332, Arizona Revised Statutes, is amended to  
28 read:

29 12-332. Taxable costs and jury fee in superior court;  
30 prohibited in criminal actions

31 A. Costs in the superior court include:

32 1. Fees of officers and witnesses.

33 2. Cost of taking depositions.

34 3. Compensation of referees.

35 4. Cost of certified copies of papers or records.

36 5. Sums paid a surety company for executing any bond or other  
37 obligation therein, not exceeding, ~~however,~~ one ~~per cent~~ PERCENT on the  
38 amount of the liability on the bond or other obligation during each year  
39 it was in force.

40 6. Other disbursements that are made or incurred pursuant to an  
41 order or agreement of the parties.

1           B. **IN A CIVIL CASE**, a jury fee shall also be included in the  
2 judgment and taxed as costs and shall be fixed by the court at the time  
3 the judgment is given. The jury fee shall include the cost of  
4 reimbursement for juror travel expenses. The jury fee shall be paid to  
5 the clerk of the court for transmittal to the county treasurer who shall  
6 dispose of it as other similar money is disposed of. An action to collect  
7 jury fees shall be commenced:

8           1. Only if the judgment fixing the jury fees is recorded in the  
9 office of the county recorder not later than thirty days after the  
10 judgment is rendered.

11           2. At any time after the date of the recording of the judgment  
12 fixing the jury fees and the judgment does not expire until it is paid in  
13 full.

14 C. The court may at any time for good cause shown relieve a person  
15 from payment of a jury fee IN A CIVIL CASE if the court believes that such  
16 relief is proper.

17 D. A JURY FEE MAY NOT BE IMPOSED IN A CRIMINAL CASE.

18           Sec. 5. Section 13-4034, Arizona Revised Statutes, is amended to  
19 read:

20 13-4034. Expense of record or transcript on appeal as county  
21 charge

22 The expense of a certified copy of the record on appeal or of the  
23 reporter's transcript, ~~or both, when appellant files an affidavit that he~~  
24 ~~is without means or wholly unable to pay for such copies, and such~~  
25 ~~affidavit is found true,~~ shall be a charge ~~upon~~ ON the county in which the  
26 appellant was convicted.

27           Sec. 6. Section 22-371, Arizona Revised Statutes, is amended to  
28 read:

29 22-371. Right of appeal; procedure for taking appeal;  
30 transcript; appellate filing fee prohibited

31 A. The defendant in a criminal action may appeal to the superior  
32 court from the final judgment of a justice or municipal court.

33 B. The procedure for appeals from a justice or municipal court to  
34 the superior court shall be as provided by rules adopted by the supreme  
35 court.

36 C. In a trial in a justice or municipal court, a transcript of the  
37 proceedings may be ordered in the sole discretion of the superior court.

38 D. A defendant may not appeal from a judgment or sentence that is  
39 entered pursuant to a plea agreement or from an admission to a probation  
40 violation.

41 E. A victim, as defined in section 13-4401, may bring a special  
42 action seeking to enforce any right or to challenge an order denying any  
43 right guaranteed to victims.

1 F. THE COURT MAY NOT IMPOSE AN APPELLATE FILING FEE ON A CRIMINAL  
2 DEFENDANT.

3 Enroll and engross to conform  
4 Amend title to conform

J.D. MESNARD

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